"**MOLEPEOPLE**" ("**Film**")
**DODGY GEEZER FILMS UK LTD (Company number 17310365) ("Company")**
Registered Address: 71 Queen Victoria Street, London EC4V 4BE, United Kingdom

# CREW DEAL MEMO – LOAN OUT

**PLEASE SIGN CLEARLY IN BLACK AND RETURN TO PRODUCTION OFFICE**

**DISTRIBUTION:** Orig: Accounts; c: x 1 Production Office x 1 Crew

| **Lender/Crew Member Details** | |
|---|---|
| **Loan Out Company Name** | ("**Lender**") |
| **Surname** | {surname} ("**Crew Member**") |
| **First Name** | {first_name} |
| **Preferred Credit Name*** | {credit_name} |
| | *For the avoidance of doubt, Crew Member's entitlement to a credit and all aspects of such credit (if applicable) will be at Company's sole discretion. |
| **Department** | {department} |
| **Unit** | {unit} |
| **Capacity / Job Title** | {job_title} |
| **Address** | |
| **Postcode** | |
| **Mobile** | {mobile} |
| **Email** | {email} |

| **Engagement Details** | | | |
|---|---|---|---|
| **Start Date** | {start_date} | | |
| **End Date*** | {end_date} | | |
| | *unless Lender's engagement and Crew Member's services hereunder are either terminated by Company in accordance with Paragraph 9 of the Standard Terms or extended by notice in writing. | | |
| **Type of Engagement** | ☐ Daily Hire ☐ Weekly Hire | | |
| **Estimated Production Dates*** | Prep Period: 5 October 2026 - 27 November 2026 | Production Period: 30 November 2026 - 28 January 2027 (hiatus dates at least from 23 December 2026 to and including 3 January 2027) | Wrap Period: 29 January 2027 onwards |
| | *each as amended by Company in its sole discretion and subject to any hiatus or suspension in accordance with Paragraph 9 of the Standard Terms. | | |
| **No Guarantee** | The Estimated Production Dates are given for information purposes only and do not indicate any guaranteed period of engagement. See Paragraph 2 of the Standard Terms. | | |
| **Production Base** | 3 Mills Studios, Three Mill Lane, London E3 3DU | | |

| **Fees:** | | |
|---|---|---|
| | **Rate** | **Notes** |
| **Daily Fee** | £{lo_daily} per day | |
| **Weekly Fee** | £{lo_weekly} per week | |
| **Hourly Rate** | £{lo_hourly} per hour | Daily crew members: Daily Fee ÷ 11 |

| | | |
|---|---|---|
| | | Weekly crew members: Weekly Fee ÷ 55 |
| **6th Day Rate** | £{lo_sixth} per day | 1.5T |
| **7th Day Rate** | £{lo_seventh} per day | 2T |
| **Overtime Rate** | £{lo_ot} per hour | 1.5T, 15-minute increments (pro-rated for partial hours accordingly), see Paragraph 4.3 of the Standard Terms |
| **Minimum Overtime Rate** | £35 per hour | See Paragraph 4.3 of the Standard Terms |
| **Maximum Overtime Rate** | £55 per hour | See Paragraph 4.3 of the Standard Terms |

**Customary Prep/Wrap**

The relevant Fee includes Customary Prep/Wrap in accordance with Paragraph 4.2 of the Standard Terms. Any Customary Prep/Wrap undertaken within Crew Member's contracted hours is included in the Hourly Rate and does not constitute a Pre-Dawn Call nor attract any Night Work Premium or Overtime payments.

**Allowances & Additional Payments**

| | | | |
|---|---|---|---|
| **Car Allowance** | {car_allowance} | Cap: | If applicable, see Paragraph 10.5 of the Standard Terms |
| **Computer Rental** | n/a | Cap: | If applicable, inventory required, see Paragraph 10.5 of the Standard Terms |
| **Box Rental** | {box_rental} | Cap: | If applicable, inventory required, see Paragraph 10.5 of the Standard Terms |
| **Equipment Rental** | n/a | Cap: | If applicable, inventory required, see Paragraph 10.5 of the Standard Terms |
| **Mobile Phone Rental** | n/a | Cap: | See Paragraph 10.4 of the Standard Terms |
| **Software Allowance** | n/a | Cap: | See Paragraph 10.5 of the Standard Terms |
| **Living Allowance** | n/a | Cap: | See Paragraph 10.5 of the Standard Terms |
| **Per Diem** | (i) n/a per shooting day; and (ii) n/a per non-shooting day, if applicable in accordance with Paragraph 10.2 of the Standard Terms. | | |

**Payment & Approvals**

Overtime, 6th/7th day rates, overages, penalty payments and travel time payments can only be accrued with the required prior written approval from the Line Producer, unless the services that incur any such rate or payment have been specifically requested by the Line Producer. All rates and payments are subject to statutory deductions as required by law.

**Subsequent Engagement**

If, after completion of Lender's initial engagement under this Agreement, Lender is subsequently engaged by Company to procure the services of Crew Member for further periods of work on the Film (each a "**Subsequent Engagement**"), Lender agrees (on behalf of itself and Crew Member) that, unless otherwise notified in writing by Company, the terms and conditions of this Agreement (including all rights, obligations, and policies set out herein) shall continue to apply in full to each Subsequent Engagement. For each Subsequent Engagement, Lender will be required to procure that Crew Member submits a digital or paper timecard as requested by Company, which shall confirm Lender's and Crew Member's acceptance of the continued application of these terms and conditions for the Subsequent Engagement (with any necessary amendments to the Start Date, End Date, or Capacity), notwithstanding that these terms and conditions may not be re-issued.

**Citizenship, Residency, and Right to Work**

Lender warrants (on behalf of itself and Crew Member) that Crew Member is a nationaland that Crew Member is ordinarily resident in . Lender further confirms (on behalf of itself and Crew Member) that Crew Member has the appropriate right to live and work in the United Kingdom and will provide all necessary documentation (including Crew Member's passport and, if applicable, any visa or immigration paperwork) as required by Company to comply with the Immigration, Asylum and Nationality Act 2006, the Immigration Act 2014 and the Immigration Act 2016, and any other applicable legislation. Company is under a duty to prevent illegal working and must carry out checks to ensure crew have the appropriate right to live and work in the United Kingdom. Lender's engagement is conditional upon Company's receipt of satisfactory evidence of Crew Member's right to work in the United Kingdom.

| **Other Deal Provisions (if any)** |
|---|
| Crew Member's entitlement to an on-screen or any other credit shall be decided at Company's sole discretion. |

| **Misc.** | | |
|---|---|---|
| **Name of Agent and Agency, if applicable** | Agent: {agent} | Agency: |

| **Entire Agreement** |
|---|
| This Agreement comprises this Deal Memo ("**Deal Memo**") and the attached Standard Terms, and together they constitute the entire agreement between Lender and Company in relation to Lender's engagement and Crew Member's services on the Film. This Agreement supersedes all prior arrangements or understandings, whether written or oral, relating to Lender's engagement and Crew Member's services. Each party acknowledges that it does not rely on (or have any remedy in respect of) any statement, representation or warranty not expressly set out in this Agreement, except in the case of fraud. |

| **SIGNED** | |
|---|---|
| Signed: _____<br>**LENDER**<br><br>Dated: _____ | Signed: _____<br>(For and on behalf of<br>**DODGY GEEZER FILMS UK LTD**<br><br>Dated: _____ |

| **Declaration by Crew Member** |
|---|
| I confirm that I have read this Agreement and that I fully understand and agree to all of its terms and have had sufficient opportunity to discuss any questions, concerns or other issues in connection with this Agreement with Lender and Company. By signing below, I confirm all grants, assignments, waivers, consents, representations, warranties and agreements made by Lender and agree to perform the services provided for in this Agreement in accordance with the terms and conditions hereof and, if I fail to do so, I acknowledge that Company shall have the same rights and remedies against me as Company has against Lender and I provide a personal guarantee in respect of all sums that may be due pursuant to all indemnities provided by Lender under this Agreement. I will look solely to Lender for any and all compensation hereunder. I confirm that Lender is responsible for monitoring my working hours relating to the services hereunder and for ensuring compliance with and making all payments pursuant to the Working Time Regulations 1998 (as amended from time to time) and I further confirm that Company shall have no liability in this regard. If, notwithstanding the foregoing and pursuant to any worker-related claim, Company is held or determined to be responsible for payment of my accrued untaken holiday, it is agreed that my entitlement to a payment in lieu of accrued untaken holiday shall be limited to £1 (or such minimum amount as may be required by law). If my employment agreement with Lender becomes ineffective or if Lender ceases to exist, then I, at the election of Company, shall be deemed substituted as a direct party hereto in lieu of Lender. I represent and warrant that I shall not engage in any activity, practice or conduct which could constitute tax evasion (whether in the UK or in any other jurisdiction) and shall comply fully with all applicable tax anti-avoidance laws, including those under the Criminal Finances Act 2017 and shall have in place reasonable prevention procedures. I shall promptly report to Company any request or demand from a third party to facilitate the evasion of tax.<br><br>Signed: _____<br><br>Dated: _____ |

**STANDARD TERMS**

1. Conditions Precedent: Company's obligations to Lender in connection with the feature-length motion picture provisionally entitled "MOLEPEOPLE" (the "**Film**", which such expression shall include all material filmed, recorded or produced in connection therewith) are subject to: (a) Lender procuring that Crew Member has the right to work in the United Kingdom and the securing of any certificate of sponsorship, work permit, passport, visa and/or other relevant immigration paperwork as may be required by any governmental agency to permit Crew Member to render services where required by Company and receipt by Company of any other documentation Company may require in order to satisfy the requirements of the Immigration, Asylum and Nationality Act 2006, the Immigration Act 2014 and the Immigration Act 2016, in each case as amended from time to time, and any other applicable legislation; (b) if Crew Member is using Crew Member's own car for Company business, a copy of Crew Member's driving licence and insurance certificate confirming Crew Member's vehicle is covered for business use; (c) Lender procuring that Crew Member successfully completes all online training modules required by Company from time to time; and (d) receipt of a fully executed copy of this Agreement signed by Lender and Crew Member and in the final form issued to Lender and Crew Member by Company for signing.

2. Term of Engagement: Lender's engagement and Crew Member's services will commence on the Start Date specified in the Deal Memo and shall continue until the End Date unless terminated by Company in accordance with Paragraph 9 or extended by notice in writing. If Lender is engaged to provide Crew Member's services on a daily basis, Lender is guaranteed one day of work and thereafter Lender's engagement will continue on a day-to-day basis. If Lender is engaged to provide Crew Member's services on a weekly basis, Lender is guaranteed one week of work and thereafter such engagement will continue on a week-to-week basis. Lender's engagement and Crew Member's services may be suspended or terminated at any time in accordance with the provisions of Paragraph 9. Subject to such earlier suspension and/or termination, Lender's engagement and Crew Member's services will automatically terminate, without notice, on the End Date.

3. Services: Lender undertakes to procure that Crew Member shall render Crew Member's services exclusively to Company during the period of Lender's engagement in connection with the Film as, where and when Company may direct (whether alone or in collaboration with others). Lender shall procure that Crew Member will render all such services as are customarily rendered by a crew member with the Capacity specified in the Deal Memo promptly and professionally to the best of Crew Member's skill and ability. Company's judgment shall be final and controlling in all matters.

4. Payments/Working Time:

4.1 Payments: In consideration for all services rendered by Crew Member and for all rights granted to Company pursuant to this Agreement, Company shall pay Lender the Fee specified in the Deal Memo and (subject to the provisions of Paragraphs 4.2, 4.3 and 4.5 below) overtime payable, if and when applicable. The Fee (plus any overtime payable, if and when applicable) will be payable on Company's usual pay day in accordance with its customary payroll practices. The Fee shall, if weekly, be pro-rated for any partial weeks worked in accordance with the Deal Memo. Holiday pay will be payable by Lender to Crew Member in accordance with Paragraph 4.11. In the event of a Deemed Employee Determination (as defined in Paragraph 17.9.4), the provisions of Paragraph 17.9.4 shall apply to payments under this Agreement.

4.2 Buy-Out: The consideration payable to Lender under this Agreement constitutes a complete "buy-out" of all rights in the products of Crew Member's services in connection with the Film (including, for the avoidance of doubt and without limitation, in connection with this initial engagement and any Subsequent Engagement) ("**Products**") granted by Lender (on behalf of itself and Crew Member) pursuant to this Agreement and no further sums whatsoever shall be payable to Lender or Crew Member by reason of the production and/or exploitation of the Film and/or the Products and/or any rights in and/or deriving from the Film and/or the Products. The Fee is agreed to cover the following, as applicable: (a) a "**Standard Working Day**" or "**SWD**" comprising eleven (11) hours worked plus a one (1) hour meal break; (b) a "**Continuous Working Day**" or "**CWD**" comprising ten (10) hours worked with no meal break but a "running meal"; or (c) a "**Semi-Continuous Working Day**" or "**SCWD**" comprising ten (10) hours worked plus a thirty (30) minute meal break. For: (a) the following departments, the Fee includes up to thirty (30) minutes of prep time at the beginning of each working day and up to thirty (30) minutes of wrap time at the end of each working day without any overtime being payable: ADs, Costume, Hair and Make-up, Locations, Script Supervisor and VFX; and (b) all other departments, the Fee includes an amount of prep and wrap time that is customary to that department to ensure that the crew member is ready to start the working day at unit call ("**Customary Prep/Wrap**"). Such Customary Prep/Wrap shall not be aggregated across the day. The Fee also includes all travel time between Crew Member's home and the Production Base or a "**Recognised Studio**" (being West London, Shepperton, Pinewood, Leavesden, Elstree, Twickenham, Gillette, Longcross and 3 Mills), it being acknowledged that Company may elect to have more than one Production Base and/or to re-locate from the Production Base specified in the Deal Memo to another location, in which case it will be deemed to have more than one base, and also includes provision for up to thirty (30) road miles travel at the beginning and up to thirty (30) road miles travel at the end of the working day for travel to/from a filming location. For any United Kingdom official public holiday or foreign official public holiday where work takes place abroad ("**Bank Holiday**") on which Crew Member is contracted to work but not actually required by Company to work, then Lender shall be paid at straight time. For any Bank Holiday on which Crew Member is required by Company to work, then Lender shall be paid at 2T (as defined in Paragraph 4.3 below). Save as otherwise provided in this Agreement, no payments will be made for travel, prep and wrap times, split days (late starts/late finishes), turnaround days, early starts, extended days, night work, meal allowances, meal penalties, unsocial hours, any idle days on resident locations and any Bank Holiday. The consideration includes full, equitable and adequate consideration for the rental and lending rights assigned to Company pursuant to this Agreement and the exploitation of such rights by Company.

4.3 Overtime: Overtime, including any "pre-calls" or "de-rigs", will be paid at the relevant Hourly Rate multiplied by 1.5 ("**1.5T**"), payable in fifteen (15) minute increments (and pro-rated accordingly for partial hours), subject always to a "**Minimum Overtime Rate**" of £35 per hour and to a "**Maximum Overtime Rate**" of £55 per hour and to the Customary Prep/Wrap applicable to Crew Member's role. Where this Agreement provides for payment at "**2T**", such payment shall be at the relevant Hourly Rate multiplied

by 2. All overtime must be expressly pre-approved by the Line Producer. The Maximum Overtime Rate shall apply to all hourly rates uplifted under this Agreement, including in relation to 6th Days and 7th Days (each as defined in Paragraph 4.5 below), Bank Holidays, Pre-Dawn Calls (as defined in Paragraph 4.6 below) and Broken Turnaround (as defined in Paragraph 4.8 below). For the avoidance of doubt, Crew Member's working day and hours worked shall be specific to Crew Member alone and any overtime due to Lender shall be calculated according to the hours actually worked by Crew Member themselves without reference to any SWD, CWD or SCWD applicable to, or hours worked by, any other crew member(s) or department(s).

4.4 Working Day: The working day is flexible and during shooting, unit call time is flexible. Outside the period of principal photography/reshoots and/or for non-shooting crew members (including post-production crew members), the SWD shall apply. For shooting crew members, the working day may comprise, at Company's discretion, any of the following (and each of the below variations of the working day shall be paid as eleven (11) worked hours): (a) the SWD; (b) the CWD; or (c) where there are constraints resulting from a particular location, the director's requirements, actors' availability or other exceptional circumstances, the SCWD. If Crew Member works in excess of twelve (12) hours on a CWD or SCWD, then Crew Member will be entitled to an additional twenty (20) minutes of compensatory rest.

4.5 Working Week: The "**Standard Working Week**" shall be a fifty-five (55) hour, five (5) day work week. Each working week is flexible and Company shall be entitled to nominate such days in any week (including Saturdays, Sundays and Bank Holidays). No consecutive sixth and/or seventh days shall be worked or paid for without the prior written approval of the Line Producer. Company reserves the right to require Crew Member to work on the 6th consecutive day ("**6th Day**") and/or 7th consecutive day ("**7th Day**") of any given week. Any 6th Day or 6th consecutive night worked will be paid at 1.5T (subject to the Minimum Overtime Rate and capped at the Maximum Overtime Rate) for actual hours worked. Any overtime worked on a 6th Day will be paid in accordance with Paragraph 4.3 above. Any 7th Day or 7th consecutive night worked will be paid at 2T (subject to the Minimum Overtime Rate and capped at the Maximum Overtime Rate) for actual hours worked. Any overtime worked on a 7th Day will be paid at 2T and in accordance with Paragraph 4.3 above. Saturdays and Sundays shall not be paid as a premium day unless they are a 6th Day or a 7th Day worked. Post-production crew members will follow the Standard Working Week and the SWD, and overtime will, if applicable, be paid in accordance with Paragraph 4.3 above subject always to the Maximum Overtime Rate and to the Customary Prep/Wrap applicable to Crew Member's role.

4.6 Pre-Dawn Calls: If Crew Member is called before 05:00 ("**Pre-Dawn Call**"), overtime will be paid at the Overtime Rate up until 05:00. Any hours worked from 05:00 will be at the normal relevant Hourly Rate and any call from 05:00 will be treated as a normal working day. A Pre-Dawn Call will not be treated as "Night Work" and will not attract "Night Work Premium" (each as such term is defined in Paragraph 4.7 below).

4.7 Night Work: "**Night Work**" means those shooting hours which continue after midnight or any unit call between midnight and 03:00. Provided camera wrap occurs prior to midnight, the applicable wrap period set forth in Paragraph 4.2 undertaken after midnight shall not be considered Night Work. Lender will be paid a "**Night Work Premium**" of £20 for each night of Night Work actually worked by Crew Member. The Night Work Premium will also be payable if Crew Member works overnight for reasons other than shooting. Company may schedule blocks of five (5) consecutive nights (each a "**5 Night Block**") and may schedule consecutive 5 Night Blocks. Crew Member will be entitled to a minimum rest period of fifty-nine (59) hours (inclusive of the Turnaround Period specified in Paragraph 4.8 below) between two (2) successive 5 Night Blocks. If the schedule moves from a 5 Night Block to day work, Crew Member should be given a minimum rest period of forty-eight (48) hours.

4.8 Turnaround: Company shall endeavour to give Crew Member eleven (11) hours' turnaround between Crew Member's wrap at the end of one working day and their call on the following working day ("**Turnaround Period**"). In the event of any shorter period of turnaround: (a) Company should wherever possible allow Crew Member to take an equivalent period of compensatory rest, and shall in any event afford Crew Member such protection as may be appropriate in order to safeguard Crew Member's health and safety; and (b) if Crew Member is required to work during the Turnaround Period ("**Broken Turnaround**"), Lender shall be paid at 1.5T for any such time, which payment shall accrue in thirty (30) minute increments (and shall be pro-rated for partial hours accordingly), subject to an overall cap of £45 per hour (or £22.50 per thirty (30) minute increment).

4.9 Meal Penalties: If Crew Member is a shooting crew member and: (a) Company delays Crew Member's lunch break, then Lender will be paid a penalty at the relevant Hourly Rate, which penalty shall accrue in fifteen (15) minute increments (and shall be pro-rated for partial hours accordingly); or (b) Company curtails Crew Member's lunch break, then Lender will be paid a penalty at the Overtime Rate set forth in Paragraph 4.3 above, which penalty shall accrue in fifteen (15) minute increments (and shall be pro-rated for partial hours accordingly) but in any event capped at one (1) hour where Crew Member is working a SWD and capped at thirty (30) minutes where Crew Member is working a SCWD. If Crew Member is a non-shooting crew member and Company shortens the lunch break from one (1) hour, then Lender will be paid a penalty at 1.5T, which penalty shall accrue in thirty (30) minute increments (and shall be pro-rated for partial hours accordingly). Meal Penalties shall not apply where Crew Member is working a CWD in which case Crew Member will be required to take a "running meal".

4.10 Working Time: For the duration of Lender's engagement and Crew Member's services under this Agreement and save as set out in this Agreement, Crew Member will work such hours as are necessary to fulfil Lender's and Crew Member's obligations. To the extent that Crew Member's services are subject to the provisions of the Working Time Regulations 1998, as amended from time to time ("**Regulations**"), Lender, on behalf of Crew Member, agrees that such hours worked may exceed the maximum weekly working time under the Regulations, provided however, that Lender may withdraw from such agreement by three (3) months' (or the period of the engagement, if shorter) written notice to Company at any time during the engagement. Lender shall procure that Crew Member will comply with any requests made or measures imposed to enable Company to monitor Crew Member's working time and failure to do so will be a material breach of this Agreement by Lender and Crew Member.

4.11 Holiday Pay: Lender will be solely responsible for ensuring Crew Member receives their full paid holiday leave entitlement and any payment for accrued untaken holiday (if any) on termination of the engagement. Company shall have no responsibility to Lender and/or Crew Member in such regard. Lender and Crew Member confirm that Company reserves the right to withhold its

agreement to Crew Member taking holiday on particular dates where necessary in Company's reasonable opinion to meet the requirements of the production schedule for the Film.

4.12 Rest Breaks and Rest Periods: Subject to any exigencies of production where Crew Member's activities involve the need for continuity of services, Crew Member shall be entitled to all rest periods and rest breaks required under the Regulations. If Company requires Crew Member to interrupt or not to take any particular rest period or rest break for reasons of such production exigencies, Crew Member will be provided with a period of compensatory rest whenever practicable.

4.13 Tax/National Insurance: Lender and Crew Member (and not Company) shall be responsible for all Tax due in respect of the services provided hereunder and Lender (on behalf of itself and Crew Member) indemnifies Company for any sum which Company is required to pay to a relevant authority by way of Tax to the fullest extent permitted by law and which arises as a result of the services provided hereunder. If Lender is registered for VAT, Lender shall promptly (and, in any event, within 14 days) submit appropriate valid VAT invoices and Company will pay any such invoices in accordance with its customary accounting procedures.

4.14 Withholding: Company shall have the right to deduct and withhold from any payments due to Lender all withholding and/or other Tax or other payments required to be deducted, withheld or paid by Company pursuant to any applicable present or future law or governmental rule or regulation. In the event that Company does not deduct or withhold such Tax or other payments, Lender shall immediately pay any and all such Tax or other payments together with all penalties, charges and interest relating to the foregoing and Lender (on behalf of itself and Crew Member) indemnifies Company and shall keep Company fully and effectually indemnified from and against any liability or expense in connection with such Tax or other payments (save to the extent that such recovery is prohibited by law).

4.15 Recoupment/Deductions: If Company makes any payment or incurs any charge at Lender and/or Crew Member's request for Lender and/or Crew Member's account (which Company is not obliged to do), or Lender and/or Crew Member incurs any charges with Company, Company shall have the right to recoup any and all such payments or charges by deducting them from any compensation payable to Lender pursuant to this Agreement. Any petty cash advances not repaid or correctly accounted for will be deducted from Lender's Fee and/or any other payments due to Lender or Crew Member.

5. Rights and Consents:

5.1 Owner of the Film: Lender (on behalf of itself and Crew Member) acknowledges that Company shall be the sole owner of the entire copyright in the Film throughout the universe with the full and unfettered right to make such use of the Film and all subsidiary and ancillary rights relating to the Film as it shall think fit. Insofar as is relevant for the purposes of United States copyright law, Lender (on behalf of itself and Crew Member) acknowledges that the Products are being created as a "work made for hire" specifically commissioned by Company.

5.2 Assignment: Lender (on behalf of itself and Crew Member) irrevocably and unconditionally assigns to Company free of all third party rights, claims and encumbrances and, without prejudice to the foregoing, with full title guarantee and where the assignment is of copyright by way of assignment of present and future copyright, all of Lender and/or Crew Member's right, title and interest of whatsoever nature (whether now or hereafter known or created and whether vested or contingent) in and to the Products and the Film (including all rights in the nature of copyright, including all related rights and all neighbouring rights and all other rights of whatever nature relating to the Film) for Company to hold the same absolutely, and to exploit and communicate the same to the public, in any and all languages and in any and all media (whether now known or hereafter invented) throughout the universe, for the full period of such rights wherever subsisting or acquired and all renewals, reversions, revivals and extensions of such rights and thereafter (insofar as is or may become possible) in perpetuity.

5.3 Moral Rights: To the fullest extent permitted under any applicable law, Lender (on behalf of itself and Crew Member) irrevocably and unconditionally waives in perpetuity, in connection with the Film and the Products, the benefits of any provision of law known as moral rights or "droit moral" or any similar rights whether now existing or hereafter conferred under the laws of any jurisdiction. If and to the extent that all or any part of such waiver of "moral rights" and/or a transfer of "moral rights" is not permitted or effective under any applicable law, Lender (on behalf of itself and Crew Member) hereby agrees and undertakes to the fullest extent permitted by applicable law (if any) to exercise such "moral rights" reasonably and in a way that will not have an adverse effect upon Company. As a separate undertaking, Lender (on behalf of itself and Crew Member) agrees not to take any legal action in any jurisdiction on the ground that the Film (or any version of the Film) or the use of the Products in any way constitutes an infringement of any such rights.

5.4 Irrevocable Licence: In the event Lender and/or Crew Member has any rights that cannot be assigned or waived, Lender and Crew Member hereby grant to Company an exclusive, worldwide, irrevocable, perpetual licence to use, reproduce, distribute, create derivative works from, publicly perform and publicly display the Products or any portion thereof in any and all languages and in any and all media, medium or format (whether now known or hereafter invented) throughout the universe.

5.5 Name/Likeness: Lender (on behalf of itself and Crew Member) irrevocably grants to Company the right to use Crew Member's name, voice, likeness and/or biographical material in any and all media (whether now or hereafter known or created) throughout the universe in perpetuity in connection with promoting and exploiting the Film and all subsidiary and ancillary rights relating to the Film (including any products, merchandise, "behind-the-scenes" or "bonus" or other material relating to the Film) and Lender (on behalf of itself and Crew Member) irrevocably and unconditionally grants to Company all consents required under Part II of the Copyright, Designs and Patents Act 1988 to enable Company to make fullest use of the rights granted under this Agreement.

5.6 Further Documentation: Lender shall (and procures that Crew Member shall) sign such additional documentation and do such further acts as Company may reasonably require in order to effect the purpose and intent of this Agreement.

6. Warranties: Lender (on behalf of itself and Crew Member) represents, warrants and undertakes that: (a) any material created, added and/or submitted by Crew Member for the Film (other than material provided by or alterations made by Company for use by Crew Member) shall be wholly original to Crew Member and, to the best of Lender and Crew Member's knowledge (including that which Lender and Crew Member should have known, in the exercise of reasonable prudence), is not the subject of any actual or threatened litigation or claim, and shall not infringe or violate the rights of privacy of, or constitute defamation of any party, or violate any common law, statutory rights or any other rights of any party; (b) Lender is entitled to enter into this Agreement (and give all assurances, confirmations, waivers and agreements set out in this Agreement) and neither Lender nor Crew Member is under any obligation which will in any manner prevent or restrict Lender (nor are Lender and/or Crew Member otherwise prevented or restricted) from entering into and freely performing Lender's obligations or granting all rights granted or purported to be granted under this Agreement to enable Company to exploit the Film and the Products without making any further payment other than as expressly set out in this Agreement; (c) Lender shall not (and shall procure that Crew Member shall not) engage any person to serve in any capacity or incur any charge, expense, liability or obligation on behalf of Company or order goods or pledge Company's credit without the prior consent of Company; (d) Lender shall procure that Crew Member will comply with all of Company's instructions, policies and procedures as notified to Crew Member (including, without limitation, those provided to Crew Member) and with any rules or regulations in force at any place where Crew Member is required to render services in connection with the Film including, without limitation, undertaking any training sessions required of cast and/or crew engaged in connection with the Film; (e) Lender shall not (and shall procure that Crew Member will not) enter into (and/or authorise the entering into of) any product placement agreement for on-screen exposure of any product, item and/or logo in connection with the Film, it being understood and agreed that any such agreement or arrangement shall be made solely by Company; (f) Lender shall procure that Crew Member will keep Company reasonably informed of their whereabouts and provide their telephone number throughout the term of this Agreement; (g) Lender shall procure that Crew Member will use all reasonable endeavours to attain and maintain a state of health as will enable Crew Member to render services effectively under this Agreement and, should Company wish to do so in its absolute discretion, enable Company to effect insurance on Crew Member on normal and reasonable terms for Company's own benefit against losses arising from Crew Member's inability to perform the services; (h) Lender is a corporation duly organised and validly existing under the laws of the state of its incorporation; (i) Crew Member is under a contract of employment with Lender for a term extending at least until the completion of all services required of Crew Member hereunder, which contract gives Lender the right to direct Crew Member as to when and how to perform Crew Member's services and to loan or furnish the exclusive services of Crew Member to Company as herein provided; and (j) Lender is not and will not at any time during this Agreement become a Managed Service Company within the meaning of s61B of the Income Tax (Earnings and Pensions) Act 2003 (and any amendment or re-enactment thereof).

7. Confidentiality: Lender shall keep confidential and shall not (and shall procure that Crew Member keeps confidential and shall not), at any time, disclose, publish, or otherwise disseminate, to the public or to any third party without Company's prior written consent any information, photographs, news articles or publicity of any kind relating directly or indirectly to the Film, the services rendered by Crew Member or any third party in connection with the Film, or Company's affairs generally ("**Confidential Information**") in any manner whatsoever, whether to a single or multiple recipient(s). Lender shall have a continuing duty, which shall survive the termination of this Agreement, to keep confidential and not disclose (and to procure that Crew Member keeps confidential and does not disclose) any Confidential Information to any person or entity in any manner, except as expressly authorised by Company or required by law, to the extent Lender or Crew Member (as applicable) is legally compelled to disclose such Confidential Information by the valid final order of a court of competent jurisdiction, in which event Lender shall so notify Company as promptly as practicable (and, if possible, prior to making any disclosure) and shall seek confidential treatment of such information, it being understood that Lender shall (and shall procure that Crew Member shall) cooperate in protecting against any such disclosure and/or obtaining a protective order narrowing the scope of such disclosure and/or use of the Confidential Information. Lender's confidentiality obligations hereunder shall apply to any and all media whatsoever, including, without limitation, any social networking site; micro-blogging service; user-generated or user-uploaded content website; online forum, discussion thread or comment section; personal website or blog; user modified website; or any other website, service, platform, program, application or other form or method of communication, whether now known or hereafter devised (e.g., Facebook, X, YouTube, etc.). Notwithstanding the foregoing, Lender shall (and shall procure that Crew Member shall) notify Company immediately upon Lender's or Crew Member's discovery or suspicion of any unauthorised disclosure of Confidential Information, in any form, including that which may result in the Confidential Information being released or otherwise duplicated or transferred outside the control of Lender or Crew Member (including without limitation, through an electronic hack). Upon Lender's or Crew Member's discovery of any such unauthorised disclosure of Confidential Information, Lender shall (and shall procure that Crew Member shall) cooperate with Company to regain possession of the Confidential Information and prevent its further unauthorised use and/or dissemination. Without limiting the generality of the foregoing, Lender shall not (and shall procure that Crew Member shall not) take any unauthorised photographs, audio or video recordings nor give to any third party any information, photographs or other items or material coming into their possession or control by reason of Lender's engagement in connection with the Film. The provisions of this Paragraph will survive the expiration and/or termination of this Agreement in due course or otherwise.

8. Remedies:

8.1 Lender's Remedies: Company shall have no obligation to produce or exploit the Film nor to make any use of Crew Member's services or the Products, and neither Lender nor Crew Member shall be entitled to any damages or other relief by reason thereof. No action or omission by Company shall constitute a breach of this Agreement unless Lender first notifies Company in writing specifying the alleged breach and Company does not cure the same within 14 days of receipt of such notice. If Company breaches its obligations under this Agreement, Lender's and Crew Member's rights and remedies shall be limited to the right, if any, to seek to obtain damages at law and neither Lender nor Crew Member shall have any right in such event to terminate or rescind this Agreement or any of the rights granted to Company pursuant to this Agreement or to enjoin or restrain the development, production, promotion, or exploitation of the Film and/or any subsidiary or ancillary rights relating to the Film.

8.2 Company's Remedies: Lender (on behalf of itself and Crew Member) accepts that a breach by Lender and/or Crew Member of any of the material provisions of this Agreement will or may cause Company irreparable damage and Lender agrees (on behalf

of itself and Crew Member) that Company shall be entitled to injunctive or other equitable relief to prevent a breach of this Agreement by Lender and/or Crew Member.

8.3 Remedies Cumulative/No Waiver: Except as set out in Paragraph 8.1, all remedies available to either party to this Agreement shall be cumulative, and no one such remedy shall be exclusive of, nor shall it be considered a waiver of, any other. Company's payment of any compensation or performance of any obligation under this Agreement or failure to enforce, or delay the enforcement of, any provision of this Agreement shall not constitute a waiver by Company of any breach by Lender and/or Crew Member or of any rights or remedies which Company may have as a result of such breach by Lender and/or Crew Member.

9. Termination/Suspension:

9.1 Termination Without Cause: Without prejudice to Paragraph 9.2, this Agreement may be terminated by Company on written notice with immediate effect, save in the case of a Lender hired for Crew Member's services on a weekly basis and engaged for 1 calendar month or more, where Company shall be required to give 1 week's notice of termination in writing. Company reserves the right to pay 1 week's pay in lieu of any such notice.

9.2 Suspension/Termination With Cause: Company shall be entitled to suspend and/or terminate this Agreement (in its sole discretion) with immediate effect if Lender and/or Crew Member is in breach of any obligation contained in this Agreement or if Crew Member is unwilling or unable to perform Crew Member's services in accordance with this Agreement (for whatever cause) or in the case of any event of force majeure (which term shall be interpreted in accordance with Paragraph 17.7).

9.3 Effect of Suspension: During any suspension, payment of Lender's Fee shall be suspended and no compensation or other benefits shall accrue, become payable or be provided to Lender or Crew Member. Lender shall procure that Crew Member shall, during any period of suspension, continue to comply with all obligations hereunder not affected by such suspension and shall not, without the prior written consent of Company (such consent not to be unreasonably withheld), render services to any third party. Company shall have the right (exercisable at any time) to extend the period of Lender's engagement and Crew Member's services and the running of all periods of time under this Agreement for a period equal to the period of such suspension together with a reasonable amount of time to allow Company to resume production activities.

9.4 Effect of Termination: On termination of this Agreement, Lender shall be entitled to Lender's accrued unpaid Fee up to the date of termination (or the date of any suspension preceding the termination, as applicable) unless such termination is due to a breach of this Agreement by Lender and/or Crew Member. On termination or expiration of this Agreement, Lender shall procure that Crew Member will promptly return any items or material of any kind whatsoever received or produced by Crew Member in connection with Crew Member's engagement which are still in Lender's/Crew Member's possession or control. Paragraphs 5, 6, 7, 8, 13 and 16 of these Standard Terms shall survive expiration or termination of this Agreement.

9.5 Hiatus/Shutdown: Company, in its sole discretion, may elect to schedule a shutdown during one or more hiatus period(s) during Lender's engagement hereunder, which will include, but shall not be limited to, an extended hiatus over the customary December holiday period for a length of time to be determined by Company at its sole discretion. Lender (on behalf of itself and Crew Member) recognises, acknowledges and agrees that compensation, equipment rental payments or any other fees or benefits during such hiatus period(s) will not accrue or be payable to Lender or Crew Member.

10. Expenses/Benefits:

10.1 Travel: No payments will be made for any travel between Crew Member's home and the Production Base or a Recognised Studio. Where Company requires Crew Member to travel between Recognised Studios on a single working day, travel mileage will be paid as set forth in Paragraph 10.3 below. No travel time payments will be made for the first thirty (30) road miles of any travel. For travel time beyond thirty (30) road miles (either way) to/from a Location (as defined below), the Production Base or Recognised Studio, Company shall (at its sole election): (a) pay Lender at the relevant Hourly Rate which payment shall accrue in thirty (30) minute increments (and shall be pro-rated for partial hours accordingly), subject to an overall cap of £45 per hour (or £22.50 per thirty (30) minute increment), or (b) reduce the length of Crew Member's working day (either on that day or any subsequent day on which Crew Member is scheduled to work) by an amount of time equal to the length of time Crew Member spent travelling beyond the first thirty (30) road miles of such travel. For the purposes hereof, "**Location**" shall mean one of: (a) a place of work where Crew Member can be expected to travel to and from the Production Base each day ("**Non-Resident Location**"); (b) a place of work which is more than fifty (50) road miles from a Production Base ("**Resident Location**"); or (c) a place of work situated outside the United Kingdom ("**Overseas Location**"). Travel time, where payable, shall be paid at the relevant Hourly Rate and shall not be subject to any uplifts or premiums that may otherwise be payable. For the avoidance of doubt travel time shall not: (i) re-set the count of consecutive days or nights worked; nor (ii) count towards the calculation of consecutive days or nights worked; nor (iii) be paid as a 6th Day or 7th Day or night or Bank Holiday worked. If Company requires Crew Member to travel to any UK location or Overseas Location on a day outside Crew Member's contracted working week, payment will be made at the contractual flat daily rate regardless of any changes to time zones and regardless of the day of travel. Rest days while at a Resident Location or Overseas Location will not be paid unless actually worked with the express pre-approval of the Line Producer. If Crew Member decides in their own discretion to travel home on a rest day from a Resident Location or Overseas Location no payment will be made for such travel. Notwithstanding anything to the contrary herein, in relation to all off-set prep crew members, any time spent travelling to and from the Production Base and any Location will be deemed to form part of the normal working day and will not be compensated. Any overtime worked at a Location must be expressly pre-approved by the Line Producer. If such overtime is travel, Lender shall be paid at the relevant Hourly Rate, which payment shall accrue in thirty (30) minute increments (and shall be pro-rated for partial hours accordingly), subject to an overall cap of £45 per hour (or £22.50 per thirty (30) minute increment).

10.2 Resident / Overseas Locations: If Company requires Crew Member to provide services at an overnight location from Crew Member's residence, Company will provide roundtrip transportation. If Company requires Crew Member to provide services at

an overnight location, Company will provide hotel accommodation and a daily per diem and/or meal allowance as appropriate and in accordance with Company's standard policies and procedures. All other costs and expenses will be Crew Member's own responsibility.

10.3 Mileage: Mileage, where approved, will only be reimbursed at the then-applicable HMRC rate when travelling between a Production Base and a Non-Resident Location or a Resident Location. Mileage will not be paid where Company provides transport between any base and a location. Where Company does not provide such transport, mileage will only be paid where Lender does not receive a car allowance; if Lender receives a car allowance, Lender may submit original fuel receipts for reimbursement of seventy per cent. (70%) of such fuel costs.

10.4 Mobile Phones: No mobile phone purchase, line rental, service or maintenance charges can be billed to Company. If Lender receives a mobile phone allowance, no receipts are required for receipt of such allowance. If Lender does not receive a phone allowance and prior approval has been given by the Line Producer, Company will reimburse work-related mobile phone calls on presentation of a fully itemised mobile phone bill. Company will reimburse the VAT element of work-related calls only to those not registered for VAT. Company will not pay for any data roaming charges in the UK or overseas.

10.5 Box Rental/Computer Rental/Equipment Rental/Software Allowance/Living Allowance/Car Allowance: Any Box Rental, Computer Rental, Equipment Rental, Software Allowance, Living Allowance or Car Allowance specified in the Deal Memo will be pro-rated at the rate of 1/5 for partial weeks worked and will be paid for a maximum of 5 days per 7 day week. A full and detailed inventory must be supplied to the Production Office for all box/computer/equipment/car rentals. No Box Rental, Computer Rental, Equipment Rental or Car Allowance will be payable in respect of any Turnaround Period or Broken Turnaround.

10.6 Company Transport: Where Company provides transportation to or from any location and Crew Member decides in their own discretion to travel to or from such location via an alternative means of transport, Lender hereby acknowledges and agrees on behalf of itself and Crew Member that: (i) Crew Member does so at their own risk and, to the full extent permitted by law, Company shall have no liability in relation thereto; and (ii) Company shall not be liable to reimburse Lender and/or Crew Member for any related expenses including without limitation Mileage, Car Allowance, train tickets or bus fares.

11. Production Policies and Procedures:

11.1 Disciplinary and Grievance: There are no disciplinary and grievance procedures applicable to Lender's engagement and Crew Member's services, and Company reserves the right to deal with such matters in such manner as it determines in its discretion. Any issues relating to Lender's engagement and Crew Member's services should be notified in writing to Crew Member's head of department or such other person as Company may specify from time to time.

11.2 Training: Lender will be required to procure that Crew Member will complete any induction training that Company may require from time to time. Neither Lender nor Crew Member shall be required to bear the cost of any mandatory training. Details of other training provided by Company are available on request from the Production Office.

11.3 Health and Safety: Lender shall procure that Crew Member familiarises themselves with Company's Health and Safety Policy, a full copy of which is available in the Production Office. It shall be Crew Member's duty to take reasonable care whilst at work for the health and safety of Crew Member and others who may be affected by Crew Member's acts or omissions at work. It is essential that safe working practices are maintained at all times. A failure to comply with Company's Health and Safety Policy shall constitute a material irremediable breach of this Agreement entitling Company to terminate this Agreement pursuant to Paragraph 9.2 above.

11.4 Conduct: It is strict Company policy that Crew Member must not consume, possess or supply alcoholic beverages, drugs and/or illegal or controlled substances whilst Crew Member is actually rendering services in connection with the Film (including during breaks). If Crew Member does not observe this provision, then such failure shall constitute a breach of this Agreement.

11.5 Anti-Tax Evasion: Lender shall not (and shall procure that Crew Member shall not) engage in any activity, practice or conduct which could constitute Tax evasion (whether in the UK or in any other jurisdiction) and both shall comply fully with all applicable Tax anti-avoidance laws, including those under Part 3 of the Criminal Finances Act 2017 (and all codes and ordinances issued in relation to such Act), and shall have in place reasonable prevention procedures. Lender shall (and shall procure that Crew Member shall) promptly report to Company any request or demand from a third party to facilitate the evasion of Tax.

12. Liability/Insurances:

12.1 General: Company confirms that, provided Crew Member uses best efforts to maintain good health, and provided that Lender procures that Crew Member submits to medical examinations as required by Company and neither Lender nor Crew Member does anything voluntarily that voids Company's insurance policies, Crew Member will be insured as is customary in the film and television industry. Any benefits provided under any such insurance policy will be subject to Crew Member meeting the insurers' eligibility criteria, the rules and any limitations of the relevant policy from time to time and Company being able to obtain cover at reasonable rates. Company reserves the right, in its absolute discretion, to change any such policies and/or the level or scale of benefits provided under the policy. If any scheme provider refuses for any reason to provide benefits to Lender or Crew Member, Company shall not be liable to provide such benefits itself or compensation in lieu.

12.2 Personal Property: Company will not reimburse Lender and/or Crew Member for any personal property or cash advances lost or stolen while working on the production. Lender will (and shall procure that Crew Member will) be responsible for taking care of Crew Member's own belongings.

12.3 Car: Proof of adequate vehicle insurance satisfactory to Company must be provided if Crew Member uses Lender's and/or Crew Member's own car for Company business.

12.4 Box/Equipment/Kit Rental: Company's insurance policy does not cover box/equipment/kit/rental items or any other personal equipment and Company will not be responsible for or have any liability in respect of any theft, loss of or damage to such items or equipment. Such items must be covered by Lender's and/or Crew Member's own insurance policy.

13. Data Protection: Lender (on behalf of itself and Crew Member) acknowledges (and shall procure that Crew Member shall hereby acknowledge) that Company shall collect, use and otherwise process certain personal data relating to Crew Member for purposes connected with the relationship under this Agreement, including Company fulfilling its obligations under the Agreement and complying with legal and regulatory obligations. Company wishes to ensure that the information it holds remains as accurate as possible and may therefore request Lender procures that Crew Member updates Crew Member's personal data at any time. Lender shall (and shall procure that Crew Member shall), in any event, inform Company as soon as reasonably practicable of any changes to Crew Member's personal data and Lender shall inform Crew Member that Crew Member may review and update the data on reasonable notice to Company. Company shall, from time to time, need to make some of Crew Member's data available to legal and regulatory authorities, future employers and potential purchasers of Company (or any of its assets or business), affiliates, group companies, professional advisors and other parties which provide products or services to Company. If such recipient is located, or has relevant operations located, in a jurisdiction where data protection and privacy regulations do not offer the same level of protection as within the United Kingdom and the European Union (such as the United States of America), Company shall take reasonable steps to ensure the security and confidentiality of Crew Member's data. Lender (on behalf of itself and Crew Member) also acknowledges that sensitive personal data (also known as special categories of personal data and personal data relating to criminal convictions and offences) is processed by Company for the purposes connected with the relationship under this Agreement, including where permitted under employment legislation or to determine occupational suitability. Company may also process personal data relating to Crew Member, such as travel history, and special categories of personal data, such as medical history, to manage its ability to operate during any pandemic, epidemic or spread of infectious disease. Company hereby informs Lender and Lender shall inform Crew Member that Crew Member has certain rights in respect of their personal data (such as access, rectification and portability) and that further information about these rights and Company's processing of personal data generally can be obtained upon request from Company.

14. Disclosure and Barring Service:

14.1 Company is committed to safeguarding and child protection, and the physical and emotional welfare of every child involved in the Film is of the absolute highest importance. In addition to complying with Company's policies and procedures, Lender, on behalf of itself and Crew Member, warrants and represents that Crew Member does not have any unspent convictions for sexual offences pursuant to the Sexual Offences Act 2003 or otherwise and Crew Member has never been subject to any investigation, disciplinary action or sanction relating to any involvement with children or vulnerable groups. Convictions or cautions normally considered "spent" should nevertheless be disclosed to Company if Crew Member is involved in the driving, supervision or training of children, or if Crew Member is in sole charge of children, young people or vulnerable adults.

14.2 Lender (on behalf of itself and Crew Member) acknowledges that Crew Member's services in connection with the Film may involve working with children. At Company's discretion (or as required by law in force from time to time, including for the prevention of unlawful acts), Lender's engagement and Crew Member's services may be subject to the obtaining by, or on behalf of, Company of a disclosure from the Disclosure and Barring Service ("**DBS**") or, if applicable, any similar organisation ("**Disclosure**"). If Lender's engagement and Crew Member's services are subject to the obtaining of a Disclosure, Paragraphs 14.3 to 14.5 (inclusive) below will apply to this Agreement.

14.3 Lender shall procure that Crew Member will co-operate fully with the DBS (or any other applicable organisation) and any reasonable requests from Company or its designee and will use Crew Member's best endeavours to ensure that a Disclosure is obtained as soon as reasonably possible. Company considers any failure to comply fully with this Paragraph 14.3 to be a material irremediable breach of this Agreement and Company may therefore immediately terminate this Agreement in accordance with Paragraph 9.2.

14.4 If Company does not receive a Disclosure within a reasonable period of time from the commencement of Lender's engagement and Crew Member's services in connection with the Film, Company reserves the right to immediately terminate this Agreement in accordance with Paragraph 9.2.

14.5 If a Disclosure is obtained and the contents of the Disclosure are not acceptable to Company, Company reserves the right, in its sole discretion, to terminate this engagement with immediate effect in accordance with Paragraph 9.2.

15. Compliance with the Foreign Corrupt Practices Act: It is the policy of Company to comply fully with the anti-corruption laws of the US (including, without limitation, the U.S. Foreign Corrupt Practices Act, 15 U.S.C. Sections 78dd-1 and 78dd-2, as amended from time to time ("**FCPA**")), the UK (including without limitation, the Bribery Act 2010, as amended from time to time ("**Bribery Act**")) and any other applicable anti-corruption laws and legislation anywhere in the world (collectively and individually, the "**Anti-Corruption Policy**"). Without prejudice to the generality of Paragraph 6(d) above, Lender (on behalf of itself and Crew Member) hereby represents and warrants that Lender and Crew Member are aware of the FCPA and the Bribery Act, which prohibit the bribery of public officials of any nation and have taken no action and will take no action which would be in violation of the FCPA and/or the Bribery Act, nor will Lender and/or Crew Member cause Company, its subsidiaries, assignees and/or affiliates to be in violation of the FCPA and/or the Bribery Act. Without limiting the generality of the foregoing, Lender (on behalf of itself and Crew Member) represents and warrants that (i) neither Lender nor Crew Member has directly or indirectly made or will directly or indirectly make any payment(s) or give anything of value to any government employee or official with respect to the Film, or any activity related thereto for the purpose of influencing any decision and/or action of such government employee or official in

their official capacity; (ii) Lender shall (and shall procure that Crew Member shall) immediately notify Company if a foreign public official (as that expression is defined in the Bribery Act) becomes an officer or employee of, or other person authorised to bind, Lender and/or Crew Member or acquires a direct or indirect interest in Lender and/or Crew Member; and (iii) as at the date of this Agreement, neither Lender nor Crew Member has any foreign public officials as officers, employees, authorised representatives or direct or indirect owners. Any violation of the Anti-Corruption Policy by Lender and/or Crew Member will entitle Company to immediately terminate this Agreement. The determination of whether Lender and/or Crew Member have violated the Anti-Corruption Policy will be made by Company in its sole discretion.

16. Notices: Unless otherwise stated, all notices shall be given in writing by post (provided that postage is prepaid and documentary evidence of posting is obtained), by courier or by email to, in the case of Lender or Crew Member, the address or email address specified in the Deal Memo and in the case of Company to the address or email address specified at the head of the Deal Memo. The earlier of: (a) actual receipt; (b) the date of dispatch by courier or of personal delivery; (c) the time of email transmission, or, if this time falls outside business hours in the place of receipt, when business hours resume (with "business hours" meaning 9.00am to 5.00pm Monday to Friday on a day that is not a Bank Holiday in the place of receipt); or (d) 3 business days (or, if posted outside the United Kingdom, 7 business days) after the date of posting (with "business days" meaning the days the principal business offices of Company are open), shall be deemed to be the date of service. Company does not accept service by email of proceedings or other documents in a legal action to which the Civil Procedure Rules apply.

17. Miscellaneous:

17.1 Governing Law & Jurisdiction: This Agreement (together with any non-contractual matter arising out of or in relation to it) shall be governed by and construed in accordance with the laws of England and Wales and each party irrevocably submits to the non-exclusive jurisdiction of the courts of England and Wales.

17.2 Assignability: Company has the right to assign the benefit of this Agreement in whole or in part to any other person, firm or company or to lend out Crew Member's services to a third party or parties if it so desires in connection with the production and distribution of the Film. This Agreement and Lender's rights and obligations under this Agreement may not be assigned by Lender.

17.3 Amendments: This Agreement may be amended or varied only by the written agreement of Lender and Company.

17.4 Severance: If any provision of this Agreement or the application of any provision of this Agreement to either party shall be found by any court or administrative body of competent jurisdiction to be invalid or unenforceable, such invalidity or unenforceability shall not affect the other provisions of this Agreement which shall remain in full force and effect.

17.5 Counterparts:

17.5.1 This Agreement may be executed in one or more counterparts but shall not be effective until each party has executed at least one counterpart. Each such counterpart shall constitute an original of this Agreement, but all the counterparts shall together constitute one and the same instrument.

17.5.2 Executed counterparts of this Agreement submitted electronically via an online platform approved by Company or sent by email in either Tagged Image File Format (TIFF) or Portable Document Format (PDF) shall be treated as originals, fully binding and with full legal force and effect, and the parties waive any rights they may have to object to such treatment.

17.6 Third Party Beneficiaries: Except insofar as this Agreement expressly provides that a third party may in their own right enforce a term of this Agreement, a person who is not a party to this Agreement (other than Company's ultimate holding company (as defined in s1159 Companies Act 2006, as amended) and Company's associates (as defined in s435 Insolvency Act 1986, as amended)) has no right under the Contracts (Rights of Third Parties) Act 1999 to rely on or enforce any term of this Agreement but this does not affect any right or remedy of a third party which exists or is available apart from that Act.

17.7 Interpretation: (i) Unless the context otherwise requires, words and expressions used in this Agreement shall have the same meaning as in the Copyright, Designs and Patents Act 1988. (ii) The covenants implied for a disposition with full title guarantee by the Law of Property (Miscellaneous Provisions) Act 1994 shall apply to the grants and assignments by Lender and Crew Member in this Agreement throughout the universe. (iii) Any reference to the word "including" (or any derivative of it) shall not be construed to limit the general interpretation of the words accompanying the word "including." (iv) An "event of force majeure" shall mean the interruption of or material interference with the preparation, production, completion or distribution of the Film by any event beyond the reasonable control of Company or Lender and/or Crew Member. For the avoidance of doubt the inability to secure or provide necessary labour (including as a result of any act of God (such as, an environmental disaster or public health incident), government action as a result of such act of God, strike or action which Company reasonably believes will result in a strike), power, commodities, equipment, transportation or transmission or technical facilities or the death, breach, mental or physical incapacity, disfigurement or unavoidable absence of key personnel rendering services on the Film (other than Crew Member) or any acts of terrorism, wars or riots shall be deemed to be beyond Company's reasonable control. (v) Any reference to the "Film" shall be deemed to include all material filmed, recorded or produced in connection with such Film. (vi) The following terms shall mean as follows: ("**HMRC**") means His Majesty's Revenue and Customs; ("**IR35 Rules**") means the anti-avoidance rules contained in Part 2 of the Income Tax (Earnings and Pensions) Act 2003, Statutory Instrument 2000/727 and any other applicable United Kingdom laws, legislation, statutory instruments and regulations (together with any associated published guidance) which apply where an individual worker provides services to an end client through an intermediary in circumstances where the individual would for Tax purposes be regarded as an employee or an office-holder of the client; ("**Status Determination**") means any assessment in respect of Crew Member's Tax status which Company is required to or elects to perform at any time; ("**Status Dispute Procedure**") means Company's process for determining Tax status disputes

pursuant to Paragraph 17.9.3 which is available on request from Company. For the avoidance of doubt, the Status Dispute Procedure is not contractual and there may be occasions when Company will, at its discretion, change or omit parts of the procedure; ("**Tax**") means any and all forms of taxation, levy, social security contributions, withholding or deduction or governmental charge in relation to tax (whether national or local) or other amount payable to HMRC or any other Tax authority in any jurisdiction, together with all penalties, charges, surcharges, fines and interest regardless of whether these are directly or indirectly or primarily chargeable or attributable to Company, Lender and/or Crew Member (as applicable); ("**Tax Liability**") means any requirement to account for any Tax or any Tax which Company considers should have been, or will be accountable in connection with any payment made or due to Lender from Company or any remuneration paid to Crew Member in connection with the services provided pursuant to this Agreement; and ("**VAT**") means value added tax and any equivalent tax on the sale of goods and supply of services.

17.8 Guild/Union: For the avoidance of doubt, no guild or trade union agreement or other collective agreement shall apply to Crew Member's services and this Agreement.

17.9 Parties' Relationship:

17.9.1 The relationship of Company and Lender will be that of an independent contractor from both a Tax and employment law perspective and nothing in this Agreement shall render Lender or Crew Member an employee, worker, agent or partner of Company and Lender shall not, and shall procure that Crew Member shall not, hold themselves out as such save that the above shall not apply in respect of Crew Member's status from a Tax perspective where there has been a Deemed Employee Determination pursuant to Paragraph 17.9.4 below. This Agreement constitutes a contract for the provision of services and not a contract of employment and accordingly Lender shall be fully responsible for and agrees to indemnify Company against all costs, claims, damages or expenses incurred by Company, or for which Company may become liable, with respect to: (a) any Tax Liability (save to the extent that such recovery is prohibited by law); (b) all other Tax, losses, liabilities, expenses and costs (including reasonable legal costs), together with any applicable VAT thereon, arising out of any failure by Lender and/or Crew Member to comply with its or their obligations pursuant to this Paragraph 17.9 (save to the extent that such recovery is prohibited by law); and (c) any liability for any employment-related claim or any claim based on employee or worker status brought by or on behalf of Crew Member against Company in connection with this Agreement.

17.9.2 Lender agrees that it shall, and shall procure that Crew Member shall, at any time (whether prior to, during or following the end of Lender's engagement hereunder): (a) promptly provide to Company all assistance and co-operation (including, but not limited to, the provision of information and documentation) reasonably required in relation to: (i) any obligations pursuant to the IR35 Rules; (ii) any Status Determinations; and (iii) any challenge to any Status Determination by HMRC or any other Tax authority; (b) provide prompt written confirmation to Company on receipt of any statement by Company confirming the outcome of a Status Determination (to be given as soon as reasonably practicable and in any event no later than 10 business days after receipt); (c) provide prompt written notification to Company of any material change in any of the information or documentation provided pursuant to Paragraph 17.9.2(a) (to be given no later than 10 business days after such change); and (d) ensure that all information and documentation provided pursuant to Paragraphs 17.9.2(a) and (c) above is complete and accurate in all material respects.

17.9.3 Should Crew Member disagree with or otherwise dispute any Status Determination, Lender shall procure that Crew Member shall provide full details of the basis for such disagreement or dispute in writing to Company as soon as reasonably practicable and no later than 30 days after receipt of the relevant Status Determination and shall adhere to the Status Dispute Procedure. In such circumstances, it is acknowledged that Company's decision pursuant to such procedure shall be final and binding on all parties for all purposes.

17.9.4 In the event that Company, HMRC or any other Tax authority determines at any time that Crew Member should be regarded as an employee of Company for Tax purposes (a "**Deemed Employee Determination**"), both parties agree that: (a) Company may, to the extent permitted by law: (1) deduct an amount equal to any Tax Liability from any payment due to Lender under this Agreement; and (2) reduce the gross amount of any fees or any other payments that may be due to Lender pursuant to this Agreement by an amount such that the overall cost of engaging Lender (to be reasonably determined by Company) is no greater than it would be if Crew Member were deemed to be self-employed for Tax purposes; (b) Company may elect to cease making payments to Lender and instead make any equivalent payments (less any deductions in respect of any Tax Liability) directly to Crew Member. Lender shall, on request, promptly provide any necessary information, including the bank account details of Crew Member, to facilitate such payments and Lender acknowledges that future payments under this Agreement will be subject to it complying with its obligations under this Paragraph 17.9.4(b). Lender agrees that receipt by Crew Member of such payments shall fully discharge Company's obligations to make such payments to Lender; (c) to the extent that Company becomes liable for any Tax Liability arising in the period prior to the date of the Deemed Employee Determination, Company may require that Lender pays to Company an amount equal to any such Tax Liability (save to the extent that such payment is prohibited by law), such payment to be made by the earlier of the payment date to HMRC or the relevant Tax authority or 15 business days after such demand is made by Company (the "**Due Date**"); (d) to the extent that Company does not receive the payment required by Paragraph 17.9.4(c) by the Due Date, Company shall be entitled to offset any outstanding sum from any outstanding fees that are otherwise unpaid or may be due to Lender pursuant to this Agreement; (e) Lender shall agree to any changes to this Agreement that Company may reasonably require to procure that the Tax status of Crew Member can be legitimately deemed to be self-employed; (f) Company shall be entitled upon written notice to terminate Lender's engagement with immediate effect with no liability to make any further payment (other than in respect of any accrued fees as at the date of termination); and (g) it is acknowledged that a Deemed Employee Determination shall have no effect on Crew Member's status for employment law purposes and will not entitle Lender and/or Crew Member to any employment rights or benefits. It is further acknowledged that Lender shall remain fully responsible for ensuring compliance with the provisions of the Regulations and any pensions auto-

enrolment obligations that may apply.

**END OF STANDARD TERMS**

## POLICY GUIDELINES

In conjunction with the Deal Memo and the Standard Terms, the following policy guidelines must be read and implemented by all members of the crew:

### 1. Company Purchase/Rental Orders

As stated in the Standard Terms, Crew Member must not pledge Company's credit or order goods, or incur liabilities without prior approval of the Line Producer. In practical terms, this means that only approved crew members may use order forms, order goods and open accounts with any potential suppliers. Subject to this approval, if Crew Member intends to begin trading with a supplier, Crew Member must immediately notify the Accounts department who will open a trading account on Company's behalf.

Company will only deal with suppliers through an account (unless otherwise agreed with the approval of the Line Producer if exigencies require), and no invoice will be paid unless it is properly supported by an official Company purchase/rental order, signed by a Head of Department and countersigned by the Line Producer.

### 2. Competitive Bids

If specifically requested by the Line Producer, certain purchases or rentals may require up to three (3) written bids from competing vendors and must be approved by the Line Producer or Production Manager/Production Accountant.

The processing of invoices will be held up if competitive bids are not on file.

### 3. Petty Cash

For reasons of safety and security, it is Company policy to keep the use of petty cash to an absolute operating minimum. All expenditure must be supported by a receipt, and any single purchases of £200 (two hundred pounds) or over must be pre-approved by the Line Producer. Petty cash cannot be used for large expenditures (i.e. £500 plus); these should be paid for by Company cheque unless otherwise agreed with the approval of the Line Producer or Production Manager/Production Accountant.

Reimbursements of approved expenses will only be made from original receipts, not photocopies. Credit card receipts will not be accepted unless accompanied by the original receipt.

Float accounting and reconciliations must take place regularly at the end of each working week. Heads of Department are required to approve petty cash floats before they are submitted to the Line Producer and the Accounts department. Any unaccounted advances will be deducted at the termination of Crew Member's contract.

Please take particular note that if Crew Member does carry petty cash, Crew Member will be held fully responsible if it is lost or stolen as a result of Crew Member's negligence whilst it is under Crew Member's control. Any such incident must be immediately notified to the Accounts department and to the local police.

If Crew Member needs to make a purchase or rental that can only be paid using petty cash, then Crew Member should remember that the Accounts department will only accept legible, legitimate receipts from reputable business concerns. Scraps of paper and/or adding machine tape will not be acceptable. Petty cash vouchers should be completed digitally and emailed to the Accounts department. All petty cash expenses must be approved by the Line Producer.

Approved box rentals, car allowances and vehicle mileage will not be paid in cash under any circumstances. The normal wear/tear/repair and/or maintenance and insurance of all box/kit rental items and/or vehicles provided under a car allowance are the sole responsibility of Crew Member. If Crew Member is loaned out from a company or if Crew Member is recognised by Company as being a Schedule 'D' engagement, reimbursement of any approved expenses or box rentals will only be paid if Crew Member submits an invoice. If Crew Member is on PAYE then Crew Member will be reimbursed through the payroll system. Any petty cash paid to a Crew Member who is loaned out from a company shall be deemed to be income of the loan-out company.

Crew Member should also remember that all expenses and allowances paid in excess of HMRC guidelines will be automatically reported to HMRC as taxable income and taxes will be withheld where applicable.

Petrol receipts must include the name of the driver, vehicle type, department and vehicle registration number and be approved by the relevant Head of Department prior to submission to the Production Office. Fuel reimbursement claims must be accompanied by proof of business travel (Journey Log). Only printed petrol receipts will be accepted.

There will be no cash advances against fee and Company will not permit the cashing of personal cheques.

### 4. Company Assets

Crew Member is solely responsible for all recoverable assets purchased by Crew Member on behalf of the production. Such items must be safeguarded, inventoried and reconciled with accounting at wrap. No asset may be sold, traded or given away without Company's written approval.

If Crew Member purchases any item on behalf of Company that costs more than £200 (two hundred pounds) then Crew Member must notify the Accounts department as soon as possible, as it is required by Company to maintain an up-to-date assets list.

All Heads of Department will be considered responsible for any Company assets under their control. At various stages throughout production the disposition of these assets may be checked by Company's appointed auditors.

**5. Company Phones**

Crew Member should note that any non-production use of Company telephones will not be permitted except in an emergency.

**6. Conflicts of Interest**

If Crew Member owns, controls or has an interest in any supplier who might sell or rent goods or provide services to the production, then Crew Member must disclose the connection in writing at the earliest opportunity to the Line Producer who will be obliged to seek the approval of Company.

Approval will only be given if Crew Member and the supplier concerned accept that any purchase, rental or service must be competitive on an open bid basis.

**7. Attendance and Absenteeism**

Attendance is a key factor in Crew Member's job performance. Company expects Crew Member to be present and punctual each day, in accordance with standards defined by Crew Member's Head of Department, Line Producer or Production Manager. Excessive absences (whether excused or unexcused), lateness and leaving early are all unacceptable and may lead to action being taken against Crew Member. If Crew Member is absent for any reason or arrives late or plans to leave early, Crew Member must notify Crew Member's Head of Department as early as possible.

Company reserves the right to request a doctor's statement for any illness regardless of the length of the absence. If Crew Member does not report to work for two (2) consecutive working days and fails to notify Crew Member's immediate manager of the reason for and the anticipated length of such absence, Company may consider taking disciplinary action against Crew Member upon Crew Member's return.

**8. Insurance**

If Crew Member becomes involved in or witnesses an injury or accident, illness, disability, theft, property damage or loss, then Crew Member must immediately notify the Line Producer who will assist Crew Member in drawing up a detailed report.

If Crew Member witnesses or becomes aware of any illegal activity then Crew Member must also inform the Production Office, who will bring it to the attention of the local Police.

Please also be aware that Company's insurance does not cover loss or damage of Company property if such property is discovered or is reported lost or damaged significantly after the fact.

**9. Lost or Stolen Property on Foreign Locations**

While working on overseas locations, Crew Member's personal property and any specified tools and/or equipment are covered to the extent specified in Company's insurance proposal that Crew Member must complete before travelling. It is Crew Member's responsibility to complete this form as fully as possible.

**10. Wire Request**

To request an immediate payment to a vendor, a requisition with proper approval from both Crew Member's Head of Department and the Line Producer needs to be submitted to the Accounts department. To generate a request for such a payment, an invoice or pro forma invoice must accompany the request with the following information:

(i) Vendor Name
(ii) Address/Phone/Contact Name
(iii) Itemised list of purchases or brief description of service/rental/purchase
(iv) Signed Purchase Order

**11. Cash Payments**

Cash payments to individuals or casual labour are not permitted and must be paid through the payroll service. In the case of an emergency, for last-minute site rental fees, etc., please remember to get the individual(s)' names, NI number or date of birth, telephone numbers and signature for the receipt of cash. Cash payments must be approved by the Line Producer.

**12. Health & Safety**

Every employer is required by law to provide a safe and healthy workplace. In addition, recent legislation has added an additional level of criminal liability in cases where known, dangerous conditions were concealed. If Crew Member learns of an unsafe situation during employment with Company, please bring it to the attention of the Line Producer. A copy of the Health and Safety Policy is available for inspection.

## COMPANY'S POLICY REGARDING EQUAL OPPORTUNITIES AND HARASSMENT AND BULLYING

**In conjunction with the Deal Memo and the Standard Terms, the following must be read and implemented by all members of the crew:**

### 1. Introduction

It is Company's policy to promote equality of opportunity for all employees, workers, consultants, contractors, casual and agency staff and applicants, including, without limitation, Crew Members ("**staff**"). Company aims to create a working environment in which all staff are:

- able to make best use of their skills, free from discrimination or harassment, and in which all decisions are based on merit;
- treated and treat others with dignity and respect, free from harassment and bullying.

All Crew Members should take the time to ensure that they understand what types of behaviour are unacceptable under this policy.

Company does not discriminate against staff on the basis of their sex, sexual orientation, marriage or civil partnership status, pregnancy, gender reassignment, race, colour, nationality, ethnic or national origin, religion or belief, age or disability ("**protected characteristics**"). Further, everyone has the right not to be subjected to harassment on any of these grounds.

Company is committed to the implementation of this policy and all Crew Members are required to act in accordance with this policy and treat others with dignity at all times. Company will regularly review the effectiveness of this policy to ensure that it is achieving its objectives. Company takes allegations of discrimination, harassment and bullying seriously and will address them promptly and confidentially where possible in accordance with the procedure set out below. This policy covers bullying and harassment by staff and also by third parties such as customers, suppliers or visitors.

Company reserves the right to amend this policy at any time.

### 2. Scope of this Policy

The principles set out in this policy apply to all aspects of Company's relationship with Crew Members and to relations between staff members at all levels. This includes the way in which Company advertises vacancies, recruitment and selection, training and development, opportunities for promotion, conditions of service, pay and benefits and conduct at work.

The principle of non-discrimination and equality of opportunity applies equally to the treatment of former members of staff, visitors, clients, customers and suppliers.

### 3. Key concepts explained

Outlined below is a brief explanation of some key equal opportunities concepts.

**Direct discrimination** occurs where someone is treated less favourably because they:

- have one or more of the protected characteristics set out above;
- are perceived to have a protected characteristic; or
- associate with someone who has a protected characteristic.

Direct discrimination can never be justified save where the protected characteristic is age. In this situation, direct discrimination can only be justified where it is a proportionate means of achieving a legitimate aim.

**Indirect discrimination** occurs where a policy or practice that applies to everyone particularly disadvantages people who share a protected characteristic. Indirect discrimination can only be justified if the policy or practice is a proportionate means of achieving a legitimate aim.

**Discrimination arising from disability** occurs if a person with a disability is treated unfavourably because of something arising in consequence of their disability and this treatment cannot be justified as a proportionate means of achieving a legitimate aim. If Crew Member is disabled or becomes disabled, Company encourages Crew Member to disclose this information so that Company can provide appropriate support. If Crew Member experiences difficulties at work because of their disability, Crew Member is encouraged to contact their Head of Department, the Line Producer or the Production Manager to discuss any reasonable adjustments that would help overcome or minimise the difficulty.

**Victimisation** occurs where someone is subjected to a detriment because they have (or are believed to have) complained or given information about discrimination or harassment, or have supported someone else in doing so.

**Harassment** occurs where someone is subjected to unwanted conduct related to a protected characteristic which has the purpose or effect of violating their dignity, or creating an intimidating, hostile, degrading, humiliating or offensive environment for them whether or

not that person has the relevant protected characteristic. Harassment also includes treating someone less favourably because they have submitted or refused to submit to such behaviour in the past.

The Equality Act 2010 prohibits harassment of a sexual nature and any harassment related to a protected characteristic. A person may complain of harassment even if the conduct in question was not targeted at them or if they do not possess the characteristic in question. For example, a person may be harassed by racist jokes about a different ethnic group if they create an offensive environment for them.

**Bullying** is offensive, intimidating, malicious or insulting behaviour involving the misuse of power that makes a person feel vulnerable, upset, humiliated, undermined or threatened. Power does not always mean being in a position of authority, but can include both physical strength and the power to coerce through fear or intimidation.

Bullying can take the form of physical, verbal and non-verbal conduct. It may include:

- Shouting at, being sarcastic towards, ridiculing or demeaning others;
- Physical or psychological threats;
- Overbearing and intimidating levels of supervision;
- Inappropriate and/or unduly derogatory remarks about someone's performance;
- Abuse of authority or power by those in a position of seniority; or
- Deliberately excluding someone from meetings or communications without good reason.

Bullying does not include legitimate, reasonable and constructive criticism of someone's performance or behaviour, or reasonable instructions given to someone in the course of their engagement.

## 4. Procedure for dealing with breaches of this policy

### Informal procedure

Where Crew Member believes they have been and/or are being discriminated against, bullied or harassed, they should initially consider raising the problem informally with the person responsible. Crew Member should explain clearly to the person responsible that their behaviour is not welcome and/or makes them uncomfortable. If this is too difficult or embarrassing, Crew Member should discuss the issue with the Line Producer, Production Manager, Producer or any Human Resources representative who can provide confidential advice and assistance in dealing with the matter. If this does not resolve the matter successfully, or it is not considered possible or appropriate to deal with the matter informally, Crew Member should follow the formal procedure set out below.

### Formal procedure

**Raising the complaint.** If Crew Member wishes to make a formal complaint about any breach of this policy, they should submit it in writing to the Line Producer, Production Manager, Producer or Human Resources representative. The written complaint should set out full details of the conduct in question, including the name of the person responsible for the conduct, the nature of the conduct, the date(s) and time(s) at which it occurred, the names of any witnesses and any action that has been taken so far in order to stop it from occurring. As a general principle, the decision whether to progress a complaint is up to the Crew Member who has made the complaint. However, Company has a duty to protect all members of staff and may pursue the matter independently if it is considered appropriate to do so.

**Investigation.** The Line Producer / Production Manager / Producer / Human Resources representative will arrange for the complaint to be investigated by an appropriate member of staff. A meeting will be held with the Crew Member, usually within one week of receipt of the complaint, so that Company can obtain Crew Member's account of events. Crew Member will be entitled to be accompanied to the meeting by a colleague or an accredited trade union representative. The investigator will also meet all other parties implicated in the complaint, including all witnesses of such events. The importance of confidentiality will be emphasised to each such person. At the end of the investigation, the investigator will submit a report to the Line Producer / Production Manager / Producer / Human Resources representative who will arrange a meeting with Crew Member to discuss the outcome and what action, if any, should be taken. A copy of the report will be given to Crew Member as well as the person(s) who it is alleged have acted in breach of this policy.

**Action during investigation.** Where the complaint is about another member of staff, consideration will be given as to whether it is appropriate to suspend one or both parties or make other temporary changes to working arrangements pending the outcome of the investigation. Where the complaint is about someone other than another member of staff (such as a customer, supplier, or visitor) consideration will be given to whether it is appropriate to take action to protect Crew Member pending the outcome of the investigation, bearing in mind the reasonable needs of the business and the rights of that person.

**Action following investigation.** If a complaint is upheld, prompt action will be taken to address it. Where the perpetrator is a Company employee, the matter will be dealt with under Company's disciplinary procedure. Whether or not the complaint is upheld, consideration will be given to how best to manage the working relationship between Crew Member and the person(s) who it is alleged have acted in breach of this policy.

**Appeal.** If Crew Member is not satisfied with the outcome of the complaint, Crew Member may appeal in writing to Company within one week of the date on which the decision was communicated to Crew Member. Company will appoint an appropriate member of management to deal with the appeal. An appeal meeting will be held, usually within one week of receipt of Crew Member's appeal. Crew Member will be entitled to be accompanied to the meeting by a colleague or an accredited trade union representative. The manager

responsible for hearing the appeal will confirm their decision in writing, usually within one week of the appeal hearing. There is no further right of appeal.

**5. General**

Crew Members who raise allegations of breaches of this policy in good faith will not be victimised or treated less favourably as a result. However, Company reserves the right to take appropriate action (including summary termination of their engagement) against any Crew Member who is found to have deliberately provided false information or to have otherwise acted in bad faith as part of any investigation.

Company may, at its discretion, appoint outside experts or arbitrators to assist in any investigation into a complaint of a breach of this policy. Company reserves the right to include any such findings in its decision.

## HEALTH AND SAFETY POLICY / GENERAL STATEMENT

In conjunction with the Deal Memo and Standard Terms, the following must be read and implemented by all members of the crew:

Company regards the promotion of health and safety measures as a mutual objective for all members of the unit irrespective of grade.

It is the policy of Company to do all that is necessary to protect the health and safety of all the unit members whilst at work and also that of the members of the public or any crew members who may be affected by Company's undertakings.

In particular, Company has the responsibility, as far as is reasonably practicable, to ensure:

- The provision and maintenance of any plant or systems of work which are safe and without risks to health.
- The safety and absence of risks to health in connection with the use, storage and transportation of articles and substances.
- The provision of information and supervision necessary to ensure the health and safety of all unit members.
- The provision and maintenance of a safe place of work with safe access to and exit from that workplace.
- The provision, wherever possible, of adequate welfare facilities and arrangements.
- Compliance with all relevant statutory requirements for health, safety and welfare.

Company aims to ensure that:

- All Heads of Department are aware of their own responsibility for health and safety.
- All crew members are aware that they are required to work safely and co-operate with their respective Heads of Department and other management representatives in all matters which affect their health and safety at work.

Section 7 of the Health and Safety at Work etc. Act 1974 makes clear that an individual must take reasonable care of their own health and safety and that of others who may be affected by their actions. This includes the known risks caused by drug or alcohol abuse. Legal action could be taken against any individual whose actions due to drug or alcohol abuse resulted in injury to another person. Company policy is to take disciplinary action in any instance where drug or alcohol abuse occurs.

### GENERAL ARRANGEMENTS FOR HEALTH AND SAFETY

- All crew members must report promptly to the relevant Head of Department any hazardous situation or defect.
- Appropriate first aid cover will be arranged for construction and shooting crews.
- There is a fully equipped first aid box in the Production Office.
- On location, the daily call sheet will indicate the nearest accident and emergency hospital to the location. Any accident must be reported to the Line Producer/Production Manager. An accident book is kept in the Production Office.
- All crew members must co-operate with Company (Line Producer/Production Manager) and the relevant Head of Department to ensure that a safe and healthy workplace and working procedures are maintained.
- All crew members have the duty to use properly any safety equipment necessary to protect against hazards to health and safety and to follow any instructions and training they have been given.

### SAFETY ON SET

When working on the set, whether on location or in a hired studio, always ensure exits are kept free of obstruction at all times. This will allow easy access and exit in case of emergency.

Any overhead equipment should be properly secured and cables on the ground matted or ramped wherever possible.

Ensure that fire equipment such as extinguishers is easily accessible.

Always take care when moving heavy and awkward objects and use mechanical lifting gear where it is available.

When filming from heights, whether in the studio or on location, always use a safety harness wherever it is necessary.

When working with paint or chemicals, ensure that they are stored properly at all times. All glass bottles and flammable materials should be stored in accordance with the appropriate safety regulations.

Ensure all hand tools and related equipment are in proper working order with protective guards applied where necessary. Always ensure that, when working on ladders, they are properly supported and secured wherever possible.

Obey security, fire, health and safety regulations and any statutory requirements relating to the studio, office or other place of work, including without limitation NO SMOKING requirements.

In respect of electrical safety, ensure there are no exposed live parts, and all electrical equipment is properly maintained. Always be mindful of the danger of fire if lights are placed near props, sets and other possibly flammable materials.

Where protective clothing/equipment is issued for use by unit members this must be used in any area designated as a site where such clothing and equipment should be worn. This includes the use of safety helmets in areas of construction away from studio stages. This requirement will also apply to any visitor to the designated area.

During shooting, the Safety Co-Ordinator is the First Assistant Director who will liaise between the floor crew and the Line Producer.

General Health and Safety matters can be referred to the Line Producer.

All crew members must act responsibly and with proper regard for health and safety. Irresponsible behaviour can result in termination of the contract and legal action being taken against individuals.

**a) [If Crew Member is standard crew:**

Acknowledged and agreed

……
Crew Member's signature

……
Crew Member's name in block capitals

……
Date]

**b) [If contract is for HOD: e.g. *First AD/Props Master/Location Manager/Construction Manager/Chief Accountant/Production Manager/Gaffer***

**HEADS OF DEPARTMENT HEALTH & SAFETY POLICY STATEMENT**

- *Each Head of Department has the responsibility for the implementation of Company's Health and Safety Policy and all safe working practices in the areas under their control.*
- *It is the responsibility of the Head of Department to be familiar with the assessments of any risks to health or safety associated with all activities under their control, whether carried out by the Head of Department, crew members or third-party specialist contractors. It is the Head of Department's duty to take reasonable care whilst at work for their own health and safety and that of others who may be affected by the Head of Department's acts or omissions at work.*
- *Each Head of Department will keep the Line Producer and/or Production Manager informed of all foreseeable risks to health or safety and will act accordingly to ensure the proper control of risks.*
- *As far as risk control is within their authority and pursuant to the Health and Safety Policy, each Head of Department will implement effective risk control procedures and they will ensure that all persons at risk have been instructed and trained in the safe working procedure.*
- *Each Head of Department will actively monitor the health and safety performance of those under their control. All Heads of Department will maintain safe working facilities at all times.*
- *Each Head of Department will ensure that all work is carried out in a professional and workmanlike fashion and that all equipment and property is fit for the use, soundly constructed and properly maintained.*
- *Each Head of Department will ensure as far as reasonably practicable that all persons have received proper training, instruction and information to enable them to carry out their work safely and that safe working practices are adhered to and everyone is fully aware of the hazards associated with their jobs.*
- *Each Head of Department will report to the Line Producer and/or Production Manager any accidents or near misses to persons under their control and take part in any investigation with a view to taking preventive measures.*
- *Each Head of Department will ensure that the appropriate safety equipment is available and in good order and is used at all relevant times. Protective clothing and equipment must be selected in light of the risks to health or safety which have been assessed and which cannot be controlled by more effective means.*

- *Each Head of Department will ensure that all persons under their control are aware of the implications of the Health and Safety Policy and that they understand that they all have general duties to act safely. This includes the adherence to established safe working practices. Each Head of Department will ensure that all persons under their control have produced evidence of their training and qualifications necessary for any allocated hazardous tasks prior to the commencement of such tasks and that such evidence is kept on file.*

- *Each Head of Department will maintain accurate illness and injury records for those under their control and produce the same promptly to Company upon request.*

- *Each Head of Department will ascertain whether anyone under their control requires additional health and safety training (e.g. working at heights) and will be responsible for ensuring such training is undertaken.*

*The Head of Department hereby acknowledges and agrees that a failure to comply with Company's Health and Safety Policy and/or the foregoing General Statement shall constitute a material irremediable breach of this Agreement entitling Company to terminate this Agreement pursuant to Paragraph 9.2.*

*Acknowledged and agreed:*

*……*
*[name of Head of Department]*